

STATE OF NEW YORK

694--A

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. GALLIVAN, HELMING, O'MARA -- read twice and ordered printed, and when printed to be committed to the Committee on Crime Victims, Crime and Correction -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the correction law, in relation to civilian drone use near a correctional facility

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The correction law is amended by adding a new section 608
2 to read as follows:

3 § 608. Drone use around correctional facilities. 1. No person, in a
4 private capacity, shall operate a drone within five hundred feet of a
5 correctional facility or local correctional facility in this state.

6 2. As used in this section:

7 "Drone" means a powered or unpowered aerial vehicle or a balloon float
8 or other device that:

9 (a) does not carry a human operator;

10 (b) uses aerodynamic forces or gases to provide lift;

11 (c) can fly autonomously or be piloted remotely;

12 (d) can be expendable or recoverable;

13 (e) captures images of objects or people on the ground and in the air;

14 (f) intercepts communications on the ground and in the air; and/or

15 (g) can carry a lethal or non-lethal payload.

16 3. A violation of this section shall result in a civil penalty of five
17 hundred dollars for the first offense and for each subsequent offense.

18 4. This section shall not apply to the operation of a drone by any
19 person or entity that the federal aviation administration has authorized
20 to operate a drone for a commercial purpose, where the drone is operated
21 in a manner that complies with that authorization.

22 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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